

State vs Satender Singh on 27 January, 2026

TC 69854/2024

STATE Vs. SATENDER SINGH & Anr.

(Kotwali Traffic Circle)

IN THE COURT OF GOWRI REGHUNATH : JMFC-10

CENTRAL DISTRICT : TIS HAZARI COURT : DELHI

TC 69854/2024

STATE Vs. SATENDER SINGH & ANR.

(Kotwali Traffic Circle)

1. Case No. of the case : 69854/2024
2. The date of offence : 02.12.2024
3. The name of the accused : (1) Satender Singh
s/o Sh. Viren Singh
(2) Bhawana Sharma
w/o Shiv Shankar
Sharma
4. The offence complained : u/s 185, 115CMVR
/190(2) M.V. Act
5. The plea of the accused persons : Not guilty
6. Date of reserving the order : 12.01.2026
7. The date of order : 27.01.2026
8. The final order : Accused Satender
acquitted u/s 185
M.V. Act and
convicted u/s 115
CMVR/190(2) M.V.
Act & accused
Bhawana convicted
u/s 115 CMVR/
190(2) M. V. Act.

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JUDGMENT

1. Vide this judgment, this court shall dispose of two traffic challans bearing number KOT-1108-670-2024 and KOT-11108-669- 2024 issued against the accused Satender and accused Bhawna on 02.12.2024 under Section 185 of the Motor Vehicles Act, 1988 (hereinafter referred to as M.V. Act) and Rule 115 Central Motor Vehicle Rules (hereinafter referred to as CMVR)/ Section 190(2) M.V. Act.

2. In brief, the case of the prosecution is that on the aforesaid date at about 12:40 p.m. at Chhatta Rail, within jurisdiction of traffic circle Kotwali, accused Satender was found drunk driving a motorcycle bearing registration no. DL-5SDB-0441 having 517mg/100ml of alcohol, and that he was driving the said vehicle without a valid pollution under control certificate (PUCC). Further, the case against accused Bhawna is that being the registered owner of the said vehicle, she permitted the same to be driven without a valid PUCC by accused Satender. Upon issuance of challans for the aforesaid offences, the vehicle of the accused was impounded at the spot.

3. The challans were taken up before this court on the very next day, i.e. 03.12.2024 upon appearance of accused Satender. Cognizance was taken of the offences stated in the challans. As the said offences are bailable, accused Satender was admitted to bail on furnishing of bail bonds. Accused Bhawna entered in appearance before this court on 12.12.2024, and was admitted to bail on furnishing of personal bonds. Since both accused persons opted to contest the challan, notice was framed on accused Satender under Section 185 and Rule 115 CMVR/190(2) M.V. Act, and notice was framed against accused Bhawna under Rule 115 CMVR/190(2) M.V. Act. Both accused pleaded not guilty and claimed trial.

4. Since the accused persons chose to contest the challan, an application for release of the vehicle was filed. Vide order dated 19.12.2024, the said vehicle was released on superdari to accused Bhawna being the registered owner.

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(Kotwali Traffic Circle) Prosecution Evidence

5. During trial, the prosecution examined two witnesses in support of its case. The challaning officer SI Narender Singh was examined as PW-1 who proved the challans which were Ex. PW-1/A and Ex. PW-1/B. Thereafter, witness Ct. Jitender was examined as PW-2. Both witnesses were duly cross-examined by Ld. Counsel for the accused.

Statement of Accused

6. Vide order dated 16.07.2025, prosecution evidence was closed. Thereafter, the statements of both accused persons were recorded under Section 351 BNSS in which all the incriminating evidence was put to them. Accused Satender admitted that he was intoxicated at the time of the incident, however he denied that he was the one driving the vehicle. He first stated that the vehicle was being driven by his cousin, and he was merely riding as a pillion rider. Thereafter, he added that apart from his cousin, his nephew was also riding on the same vehicle. He stated that the said vehicle was stopped

by the traffic officials, who demanded bribe from them, and upon their refusal, they issued this false and fabricated challan against the accused. He also denied having been examined using an alcometer. Further, he also denied any knowledge regarding the status of PUCC of the vehicle, and stated that he was not aware of the same as he had borrowed the vehicle from his neighbour Bhawna. During her examination under Section 351 BNSS, accused Bhawna also denied having any knowledge regarding the status of the PUCC and stated that she had already sold the vehicle to accused Satender, however she went on to admit that the registration certificate of the same had not yet been transferred. Both accused persons stated that they did not wish to lead evidence in their defence.

Final Arguments

7. During final arguments, Ld. APP for State argued that the oral evidence of both prosecution witnesses along with the proof of the challans and the result of the breath analysis examination sufficiently establishes the case of the prosecution. Accordingly, it was submitted that the offences under Section 185 and Rule 115 STATE Vs. SATENDER SINGH & Anr.

(Kotwali Traffic Circle) CMVR/190(2) M.V. Act are proved beyond reasonable doubt. Therefore, it was prayed that the accused persons be convicted of the said offences.

8. Per contra, Ld. Counsel for the accused submitted that the challans were issued falsely as the accused failed to meet the demands for illegal gratification made by the traffic officials. It was argued that apart from the oral testimony of the prosecution witnesses, no other corroborative evidence has been brought on record in the form of videography, or statements of public witnesses. It was vehemently argued by Ld. Counsel for the accused that in the absence of any such corroborative evidence, the prosecution has failed to discharge its burden of proof. Accordingly, it was prayed that the accused persons be acquitted.

Analysis of Evidence

9. It is a settled principle of criminal jurisprudence, that the accused is presumed to be innocent, and the burden of proving the guilt of the accused beyond reasonable doubt lies on the prosecution. In light of this standard of proof, we will now examine the evidence led by the prosecution in relation to both offences.

Drunk Driving

10. In order to establish the guilt of the accused qua the offence of drunk driving under Section 185 M.V. Act, prosecution must establish the existence of the following facts beyond reasonable doubt; firstly that the accused was driving or attempting to drive a motor vehicle, secondly while doing so the accused had in his blood, alcohol exceeding 30 mg. per 100 ml blood, and thirdly that such quantity of alcohol was detected in a test conducted by a breath analyser or any other laboratory test.

11. To prove the aforesaid ingredients, the prosecution relied on the oral evidence of both witnesses. The testimony of PW-1 and PW-2 is along similar lines. As per both witnesses, on 02.12.2024 they were on duty at Chhata Rail where they were checking vehicles, and at about 12:10 PM they stopped vehicle bearing registration number DL5SDB0441. Both witnesses further testified that they checked accused Satender upon suspicion of being STATE Vs. SATENDER SINGH & Anr.

(Kotwali Traffic Circle) alcoholic. They deposed that upon examining him with an alcometer, the level of alcohol was found to be 517mg/100ml. Further, the accused was correctly identified by both witnesses. During cross-examination, PW-1 admitted that he had recorded a video at the time of issuance of the challan, however the same was not filed on record.

12. At this stage it would be pertinent to examine the defence taken by the accused. As per the admission of the accused in his examination under Section 351 BNSS, he has taken a two-fold plea of defence. Firstly, while he admitted that he was intoxicated at the relevant point of time, he denied having driven the vehicle under intoxication. He stated that the vehicle was being driven by his cousin, and that they were also accompanied by his nephew, who was riding on the same motorcycle. The second plea of defence taken by the accused was that he was not examined using an alcometer, and the result of breath analysis filed on record is false and fabricated.

13. As far as the first plea is concerned, regarding the accused not being the driver of the vehicle, it is noteworthy that this plea was taken for the very first time during his examination under Section 351 BNSS. Both prosecution witnesses were never confronted with any question as to whether there was any other person riding the vehicle along with the accused, and more importantly whether the vehicle was being driven by a third person, and not the accused.

14. It is a well-settled position of evidence law that a party who seeks to impeach the credit of a witness must draw the attention of the witness specifically to the points of his testimony which such party objects to as being untrue, so that the witness is given an opportunity to explain the same. In the absence of any suggestion or questions regarding the defence that the driver of the vehicle was not the accused, that part of the testimony of the witnesses remains unchallenged, and can be accepted as true. Therefore, the first plea of defence taken by the accused fails to inspire the confidence of the court.

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15. Coming to the second plea of defence regarding the correctness of the breath analysis test, it may be reiterated that while accused Satender denied having been examined using an alcometer, he admitted that he was intoxicated. He also admitted his signature on the result of the breath analysis test.

16. However, it is a well-settled position of law that an admission made by the accused in his examination under Section 351 BNSS cannot be the sole basis to convict him. Section 185 M.V. Act

does not penalize all persons who drive vehicle under intoxication, but only those whose quantity of alcohol exceeds 30mg/100ml. Therefore, regardless of the admission made by the accused that he was intoxicated, it is the duty of the prosecution to prove beyond reasonable doubt that the level of alcohol in his body exceeded the permissible limit of 30mg/100ml.

17. As far as the result of the breath analysis test is concerned, which is filed as a part of the challan Ex. PW-1/A and Ex. PW-1/B, the same is admissible as per Section 203(6) M.V. Act. Perusal of the same reveals that the test was conducted on 02.12.2024 at 12:37 hrs at Chhata Rail, Hanuman Mandir, which corroborates the version of the witnesses regarding the time and location of conducting the test. It further records that the level of alcohol was found to be 517 mg/100 ml.

18. During cross-examination, both witnesses denied that the result of the breath analysis was false and fabricated. However, the date of calibration of the alcometer is 01.04.2023, whereas the test was conducted on 02.12.2024, i.e. more than a year later. Calibration of the device is essential to ensure that the result obtained is accurate. Therefore, the possibility of the device not working properly cannot be ruled out.

19. At this stage it would also be appropriate to address the contention raised by Ld. Counsel for the accused regarding failure of PW-1 to file the video recording of the incident. It is a common practice in challans involving drunk driving for the challaning officers to conduct video recording of the process of conducting the breath analysis test on the accused to corroborate their case. Despite STATE Vs. SATENDER SINGH & Anr.

(Kotwali Traffic Circle) having admitted that he recorded the same, PW-1 failed to file the said video on record, and also failed to offer any explanation for its absence.

20. The video recording could have established that the accused was in fact examined using an alcometer, and the results obtained from the test which would have lend credence to the case of the prosecution. The omission to file the video recording goes against the case of the prosecution in the present case particularly because the alcometer has exceeded its date of calibration and correctness of the test result has been challenged by the accused.

21. In these circumstances, this court finds that the plea of defence taken by the accused that he was not examined with an alcometer and that the result of the breath analysis being false is a probable defence. Therefore the prosecution has failed to prove beyond reasonable doubt that the accused was drunk driving the vehicle having alcohol level over 30mg/100ml at the relevant point of time.

Driving without PUC

22. With regard to the offence under Rule 115 CMVR/190(2) M.V. Act, the said provisions penalize the driver and owner of a vehicle who drive or permit a vehicle to be driven in a public place without a valid PUC.

23. In the present case, both witnesses deposed that after examining the accused with alcometer, PW-1 asked him to produce documents relating to the vehicle, and the accused failed to produce a valid PUC at that time.

24. In their examination under Section 351 BNSS, both accused persons denied having any knowledge as to the validity of the PUC of the vehicle. While accused Satender stated that he had borrowed the vehicle from accused Bhawna, the latter stated that she had already sold the vehicle to accused Satender, however she admitted that the registration certificate of the vehicle was not transferred to the accused. Further, both the accused also failed to STATE Vs. SATENDER SINGH & Anr.

(Kotwali Traffic Circle) produce a valid PUC in respect of the vehicle during the course of the trial.

25. Since no evidence was led by accused Bhawna in support of her defence that she had already sold the vehicle to accused Satender, and she was found to be the registered owner of the vehicle as on the date of the challan, there is no reason to disbelieve the case of the prosecution on this point.

26. Accordingly, this court finds that the prosecution has successfully proved beyond reasonable doubt that accused Satender was driving the vehicle without a PUC, and accused Bhawna being the registered owner of the vehicle, permitted the same to be driven without a PUC.

Conclusion

27. From the above-mentioned discussion, this court is of the view that the prosecution has failed to prove the guilt of accused Satender under Section 185 M. V. Act beyond reasonable doubt. However, the prosecution has succeeded in establishing the guilt of both accused Satender and Bhawna Rule 115 CMVR/ Section 190(2) M.V. Act beyond reasonable doubt. Accordingly, accused Satender and Bhawana stand convicted for the offences under Rule 115 CMVR/Section 190(2) of M. V. Act, and accused Satender stands acquitted for the offence under Section 185 M.V. Act.

Announced in open court today i.e. 27.01.2026.

GOWRI REGHUNATH
REGHUNATH Date: 2026.01.27

(GOWRI REGHUNATH) 16:18:05 +0530

JMFC-10/Central/THC
27.01.2026

It is certified that this judgment contains 8 pages and each page bears my signatures. Digitally signed by GOWRI REGHUNATH REGHUNATH Date: 2026.01.27 16:18:10 +0530 (GOWRI REGHUNATH) JMFC-10/Central/THC 27.01.2026